

Stereo.HCJDA 38.
Judgment Sheet
LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

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WRIT PETITION NO.5009 of 2025

SYED SAFEER ABBAS KAZMI and 128 others

Versus

CHIEF EXECUTIVE OFFICER, DISTRICT HEALTH AUTHORITY,
MULTAN and 6 others

JUDGMENT

Dates of hearing:	<u>05.08.2025, 06.08.2025 & 07.08.2025</u>
Petitioner by:	Mr. Muhammad Ali Siddiqui, Advocate.
Respondents by:	Mr. Kanwar Sajid Ali, Assistant Advocate General for Punjab alongwith Dr. Arshad Abbas, DHO (HRM & MIS) DHA, Multan, Ameer Hamza, L.O. CEO (DHA), Multan and Mehmood Shoukat, L.O. CEO (DHA), Multan.

MIRZA VIQAS RAUF, J. This single judgment shall proceed to decide the titled petition as well as Writ Petitions No.2475 & 8666 of 2025; being raising similar questions of facts and law.

FACTS

2. Facts in precision necessary for adjudication of all the petitions are that the petitioners were appointed on work charge basis as semi skill workers to be deployed as Sanitary Patrols and Female Sanitary Patrols, respectively in the years 2015 & 2016, respectively. The services of the petitioners were extended from time to time till 2023 and they considering themselves to be qualified for regularization of their services in terms of policy issued by the Government voiced their

grievance before the respondents but in vain. The subject petition is arising out of order dated 25th March, 2025 passed by respondent No.2 in pursuance to the order of this Court passed in Criminal Original No.118-W of 2025, whereby the representation of the petitioners to be declared as permanent workmen has been declined and their services have been discontinued in future.

3. In response to the averments in the petition the respondents submitted their written statement wherein it is stated that the petitioners were purely appointed as contingent paid staff only for 89 days for the purpose of Punjab prevention & control of epidemic (dengue) program under the terms and conditions that they shall not be regularized because they are only contingent paid staff and their services have to be terminated automatically after the specific period as enunciated in the office order delivered to the petitioners at the time of their induction. In furtherance thereof, the respondents have no authority to appoint any person on contractual or regular basis without the prior sanction of higher authorities and adopting the codal formalities as envisaged in recruitment policy 2004 & 2022, so the petitioners have no legal right to claim themselves as permanent employee.

ARGUMENTS

4. Learned counsel for the petitioners contended that the petitioners were appointed against permanent posts and with the issuance of notification dated 29th January, 2021 by the Government of Punjab, they became eligible to be declared as permanent workmen in terms of the Industrial and Commercial Employment (Standing Orders) Ordinance, 1968. Learned counsel contended with vehemence that though the cases of the petitioners were initially sent to the committee constituted for the said purpose for their regularization in terms of the policy but the respondents then took a summersault and started claiming that the very appointments of the petitioners were not backed by law. Learned counsel argued that similarly placed employees have already been benefited under the policy whereas the petitioners have been discriminated in oblivious of Article 25 of the Constitution of the Islamic Republic of Pakistan, 1973. Learned counsel in the last

contended that impugned order is patently illegal. Placed reliance on BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, FAISALABAD through Chairman and others versus TANVEER SAJID and others (2018 SCMR 1405).

5. Conversely, learned Law Officer submitted that the petitioners were employed on work charge basis and even their posts were not of permanent nature. He added that policy notified through notification dated 29th January, 2021 is not applicable to the petitioners. Learned Law Officer contended with vehemence that no discrimination has been done with the petitioners and their case is not similar to the case of the employees who were regularized in service.

6. Heard. Record perused.

FINDING

7. The petitioners were hired on work charge basis as semi skill workers to be deployed as Sanitary Patrols way back in the year 2015-2016. The period of service of the petitioners has been extended from time to time. In the meanwhile, through notification dated 29th January, 2021, issued by Government of the Punjab, Services & General Administration Department (Regulations/O&M Wing) in pursuant to the approval of Provincial Cabinet through circulation among the Provincial Ministers under Rule 25(1)(b) of the Punjab Government Rules of Business, 2011 and in terms of Rule 27 and Rule 28(15) of the Rules, *ibid*, notified the policy for work charged/contingent paid and daily wage employees (hereinafter referred to as “**Policy**”), which acted as a ray of hope for the petitioners to get their services regularized. In furtherance of the **Policy**, Government of the Punjab, Primary & Secondary Healthcare Department, South Punjab issued a circular on 24th June, 2022 to all the Chief Executive Officers, District Health Authorities, South Punjab to submit a report to the following effect :-

- a) Each CEO, DHA South Punjab shall constitute scrutiny committee to consider the cases of their work-charges, daily wage and contingent paid employees as per these policy guidelines.
- b) These committees must define the definition a permanent workman in order to differentiate them from work charged Employees, Daily Wages and Contingent Paid Staff.

8. In compliance to the above, a Departmental Scrutiny Committee was constituted under the supervision of District Health Officer (HRM-MIS), being Chairman to evaluate the case of 700 contingent paid staff/daily wages workers, hired by District Health Authority, Multan, for the status of permanent workmen. This followed sending of requisite information/data regarding policy framework for work charged employees, daily wages and contingent paid staff to the Secretary, Government of the Punjab, Primary & Secondary Healthcare Department, South Punjab, Multan, wherein the petitioners were recommended for regularization but dismay to the petitioners, through office order dated 5th December, 2024, the Chief Executive Officer, District Health Authority, Multan, directed to discontinue the services of 700 contingent paid staff (petitioners) with immediate effect on the following grounds/recommendations :-

- i. The hiring was done in sheer violation of the guidelines/policy framed by the Govt. of the Punjab, Primary & Secondary Healthcare Department Punjab, Lahore vide Notification No.SO(EP&C)6-5/2023(Misc-II) dated 17.03.2023.
- ii. The then Dr. Atta ur Rehman, District Program Coordinator (EP&C) DHA Multan, Dr. Zeeshan Haider Gardezi ex. District Health Officer (Preventive Services), Multan and Dr. Faisal Raza Qaisarani ex. Chief Executive Officer, District Health Authority, Multan issued hiring orders till June-2024 without approval of competent authority and against above said policy/guidelines regarding hiring of contingent paid staff framed by the Govt.
- iii. The disciplinary proceeding under PEEDA Act 2006 may be initiated against Dr. Atta ur Rehman, District Programme Coordinator (EP&C), DHA, Multan, Dr. Zeeshan Haider Gardezi ex. District Health Officer (Preventive Services), Multan and Dr. Faisal Raza Qaisarani ex. Chief Executive Officer, District Health Authority, Multan for making illegal hiring, causing loss to the Government and on the above said solid grounds against them as they issued hiring order from 01-01-2024 for 89 days and 01-04-2024 for 89 days against the policy guidelines of the Govt.
- iv. The disciplinary proceeding under PEEDA Act 2006 may also be initiated against all Entomologist /Technologist who are involved to continue the services of 700 CPS in field and allowed them to mark their attendance in Bio-Metric Machines w.e.f July 2024 to 05-12-2024. Their services may be placed in any other District out of District Multan to prevent the chances of conspiracies and so that they may not provoke CPS staff for any unlawful action against DHA, Multan in future.
- v. The services of Dr. Atta ur Rehman, District Program Coordinator (EP&C), DHA, Multan may immediately be surrendered from District Health Authority, Multan,
Moreover, Administrative Department/Competent authority is hereby requested for ex-post facto sanction and funds of 700 Contingent Paid

Staff regarding their wages/payments for work done from July 2024 & September 2024 to 05-12-2024.

The above order constrained the petitioners alongwith others to approach this Court through various constitutional petitions (Writ Petitions No.17119/2024, 17343/2024, 17430/2024, 17323/2024 & 1567/2025), which were disposed of vide orders dated 20th December, 2024, 24th December, 2024, 27th December, 2024, 24th December, 2024 & 17th February, 2025, respectively and matter was referred to the Secretary, Government of Punjab Primary & Secondary Healthcare Department, who by way of order dated 25th March, 2025 proceeded to reject the representations of the petitioners by affirming the order dated 5th December, 2024.

9. Before proceeding further, it would be advantageous to observe that though the main ground for discontinuation of services of the petitioners was that their hiring was done in sheer violation of the guidelines/policy framed by the Government of Punjab, Primary & Secondary Healthcare Department but as per observations recorded in the order dated 25th March, 2025, it is the Primary and Secondary Healthcare Department Punjab, Lahore, who allowed the District Health Authority, Multan to hire 700 contingent paid staff to control the dengue situation for the financial year 2019-20, 2020-21 and 2022-23, which is not only self-contradictory but erodes the very root of the order dated 5th December, 2024.

10. There is no cavil that an employee is precluded to claim the regularization of his services as a matter of right but if somebody is employed even though as a contract or work charged employee against a post of permanent nature and he worked on such post for a considerable period in the said capacity and there is some statute, rule or policy bestowing the benefit of regularization upon such employee, he becomes entitle to seek regularization of his services by invoking the constitutional jurisdiction of the High Court. There are though counter stances of both the sides with regard to the nature of the post upon which the petitioners were appointed but admittedly the petitioners were appointed as Sanitary Patrols (male and female) as contingent paid staff and they remained working in the said capacity from 2015 to

2024 and their services were also utilized for prevention and control of epidemics (dengue). In terms of the **Policy**, a permanent workman is a workman, who has been engaged on work of permanent nature likely to last more than nine months and has satisfactorily completed a probationary period of three months in the same or another occupation in the industrial or commercial establishment, including breaks due to sickness, accident, leave, lock-out, strike (not being an illegal lock-out or strike) or involuntary closure of the establishment and includes a *badli* who has been employed for a continuous period of three months or for one hundred and eighty three days during any period of twelve consecutive months as is laid down in the Industrial & Commercial Employment (Standing Orders) Ordinance 1968. In terms of clause 4 of the **Policy** dealing with policy guidelines of work charged employees, daily wages and contingent paid staff, all those employees who have completed 9 months or more may be considered for status of permanent workmen in terms of the Industrial & Commercial Employment (Standing Orders) Ordinance, 1968 and they shall be entitled to all the rights and benefits of permanent workmen. **Policy** in vogue has the backing of law and when the case of the petitioners is duly covered thereunder no excuse can be offered by the respondents in regularizing the petitioners. Guidance in this regard can be sought from BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, FAISALABAD through Chairman and others versus TANVEER SAJID and others (2018 SCMR 1405) wherein the Supreme Court of Pakistan held as under :-

“6. It may be noted that the superior Courts have always condemned the practice of keeping the employees on temporary basis for long periods of time without confirming or regularizing their services. It has been held that an employee being jobless and in fear of being shown the door has no option but to accept and continue with the appointment on whatever terms a job is offered by the employer. In fact such consent to continue to work as temporary employee is not in the nature of free consent between the employees, on the one hand and employers on the other. A person so employed is in no position to bargain with the employers/departments which are in a disproportionately dominating bargaining position as compared to the employee and the employer could always coerce them to waive their legal protection and accept, contractual terms or face the risk of losing their jobs. [see: Habibullah v. Government of the Punjab (PLD 1980 Lah. 37), Pakistan v. Public at Large (PLD 1987 SC 304) and Sui Southern Gas Company Ltd. v. Ghulam Abbas (PLD 2003 SC 724)].

7. This Court in the case of Dr. Anwar Ali Sahto v. Federation of Pakistan (PLD 2002 SC 101), held that even contract employees could be reinstated in service in appropriate cases if such

appointment had become permanent by efflux of time. A similar view was taken in the case titled as Abdul Sattar v. Sui Northern Gas Pipelines Limited (2001 SCMR 1935). In the case of Ikram Bari v. National Bank of Pakistan (2005 SCMR 110) the Court after relying upon the afore-noted judgment held that persons, who have served for more than three years, without a break of more than 15 days, are entitled to regularization of their services. Relevant portion from the said judgment is reproduced below:-

"15. It is difficult to countenance the approach of the Bank that the temporary Godown staff and the daily wages employees should be continued to be governed on disgraceful terms and conditions of service for an indefinite period. In view of section 24-A of the General Clauses Act 1897, the National Bank was required to act reasonably, fairly and justly. An employee being jobless and in fear of being shown the door had no option but to accept and continue with the appointment on whatever conditions it was offered by the Bank. ...

18. In our view, the conditions of three years length of service with not more than 15 days break between the consecutive appointments and termination of service imposed by the Tribunal for regularization of service of employees are quite reasonable and are also in line with the policy decisions taken by the Bank itself from time to time"

In the case of Ejaz Akbar Kasi v. Ministry of Information and Broadcasting (PLD 2011 SC 22), contract employees of PTV Corporation who approached this Court for regularization of their services on the ground that they had worked for many years on contract basis, therefore, deserved to be considered for regularization, were directed to be regularized. The review petition filed against the said judgment was dismissed. In the case of Pir Imran Sajid v. Managing Director/General Manager (Manager Finance) Telephone Industries of Pakistan (2015 SCMR 1257) this Court held as under:-

"6. Admittedly, all the appellants have been serving TIP in their respective position since about last more than twelve (12) years, though on contract basis, however, renewal of their contracts on year to year basis since the inception clearly shows that the nature of their jobs/duties is permanent and not casual or temporary, and that the appellants have been performing their functions/duties to the satisfaction of their employer and further that throughout the whole period their services were required, and have remained useful for and beneficial to the organization. There is no allegation of any misconduct or incompetence against the appellants, rather they have been granted increments from time to time. It has also not been, and indeed, in the facts and the circumstances of the case, could not have been, claimed that the posts held by the appellants and the work carried out by them was of a temporary nature. ...

9. It is now well established that right to life as envisaged by Article 9 of the Constitution, includes the right to livelihood and as laid down in the case of Abdul Wahab (supra), the "right to livelihood, therefore, cannot hang on to the fancies of individuals in authority." Certainly, as has further been held in the said judgment; "it shall unmistakably be permissible that the employment of an employee can be brought to an end, but obviously in accordance with law", whereas in the present case, and as observed earlier, there was/is no justification for not making their employment permanent, and for keeping their entire career, rather livelihood exposed and susceptible to the whims of the authorities, which also hurts the dignity of the appellants.

10. *Indeed the service/employment rules of TIP are non-statutory, but such does not prevent the appellants from seeking implementation of the decision/order of the Federal Government/ministry for their regularization.*

11. *It hardly needs to be emphasized that the whole edifice of governance of the society has its genesis in the Constitution and laws aimed at to establish an order, inter alia, ensuring the provisions of socio-economic justice, so that the people may have guarantee and sense of being treated in accordance with law that they are not being deprived of their due rights.*

13. *Looking through the above constitutional prism and keeping in view the facts that the federal government which owns, controls, manages and finances TIP has directed TIP to regularize the appellants, and that admittedly the appellants have initially been appointed in an open and transparent manner and after the vacancies were advertised in the newspapers, one cannot escape the conclusion that the appellants ought to have been regularized."*

In another case (*H.R.C. No. 16360/2009*), this Court took suo motu notice of non-regularization of Lady Health Workers and other staff working in the Province of Punjab for many years and directed the concerned authorities to regularize their services. Thereafter, pursuant to the order of this Court (*passed in Crl. Original Petition No. 15/2012 in H.R.C. No. 16360/2009*), the services of Lady Health Supervisors, Accounts Supervisors, Lady Health Workers, Drivers and other PMU Staff of the National Programme for Family Planning and Primary Healthcare Punjab were regularized vide Notification dated 29.7.2016.

8. Turning to the instant case, the respondents-employees have been working with the petitioner-BISEs for a long period of time ranging between 3 to 12 years, as mentioned in the impugned judgments by the learned High Court. Though they were initially appointed for a period of 89 days but after the expiry of said period, their contracts were renewed from time to time for further periods of 89 days at a time with an artificial break of 1 or more days. It seems that the motive behind such artificial break was to avoid regularization of their services on the pretext that they were not continuously in service. Since the respondents were in service for a long time, it clearly shows that the posts they were occupying were permanent in nature and not casual or temporary. It further indicates that the services of respondents were not only required but also beneficial to the department and that they (*respondents*) had been performing their duties with due diligence to the satisfaction of the authorities. Noting has been placed on the record that may show anything to the contrary."

11. There is yet another important aspect; previously Sanitary Patrols Male and Female though appointed on contract have been regularized by the respondents in terms of the Punjab Regularization Act, 2018 but learned Law Officer has failed to draw any distinction in the case of the petitioners and those Sanitary Patrols, who have already been regularized by the respondents through office order dated 31st May, 2022. This being so the petitioner cannot be discriminated in view of mandate of Article 25 of the Constitution of the Islamic Republic of Pakistan, 1973 which reads as under :-

“25. Equality of citizens. (1) All citizens are equal before law and are entitled to equal protection of law.
(2) There shall be no discrimination on the basis of sex.
(3) Nothing in this Article shall prevent the State from making any special provision for the protection of women and children.”

It is manifestly clear from the above that all citizens are equal before law and are entitled to equal protection of law and that there shall be no discrimination amongst persons who are at the same pedestal. Guidance in this respect can be sought from QUETTA DEVELOPMENT AUTHORITY through Director General versus ABDUL BASIT and others (2021 SCMR 1313) and KHAN TOTI and others versus GOVERNMENT OF NWFP through Secretary Finance and others (2016 SCMR 1206).

CONCLUSION

12. For the foregoing reasons all these petitions are **allowed** and impugned orders dated 5th December, 2024 and 25th March, 2025 passed by respondents No.1 & 2 are set aside, being illegal and unlawful with the direction to the respondents to regularize the petitioners in terms of **Policy**, as a consequence any further steps taken by the respondents in pursuance to the impugned orders shall also stand nullified with no order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

APPROVED FOR REPORTING

JUDGE

*Shahbaz Ali**